

Chapter 1

New and ongoing matters

1.1 The committee comments on the following bills and legislative instruments, and in some instances, seeks a response or further information from the relevant minister.

Bills

Health Legislation Amendment (Modernising My Health Record—Sharing by Default) Bill 2024¹²

Purpose	The bill would establish a legislative framework for requiring key health information to be shared with the My Health Record system by default, subject to exceptions.
Portfolio	Health and Aged Care
Introduced	House of Representatives, 21 November 2024
Rights	Privacy

Sharing information with the My Health Record system

1.2 The My Health Record system is an electronic summary of an individual's health records. Since 2018, it has operated on an opt-out basis.¹³ This means that a My Health Record is automatically created for all healthcare recipients¹⁴ who can choose to cancel or suspend their registration at any time. Currently, where an individual has a My Health Record, healthcare providers are not obliged to register with My Health Record and upload health records.

1.3 This bill seeks to amend the *My Health Records Act 2012* to require that a prescribed healthcare provider organisation¹⁵ must, subject to exceptions, share with the My Health Record system healthcare information or a healthcare record created in relation to a healthcare recipient who has a My Health Record, as specified in the

¹² This entry can be cited as: Parliamentary Joint Committee on Human Rights, Health Legislation Amendment (Modernising My Health Record—Sharing by Default) Bill 2024, *Report 1 of 2025*; [2023] AUPJCHR 3.

¹³ My Health Records (National Application) Rules 2017.

¹⁴ *My Health Records Act 2012*, section 5 defines 'healthcare recipient' to mean 'an individual who has received, receives, or may receive, healthcare'.

¹⁵ Schedule 1, item 3 seeks to insert 'prescribed healthcare provider organisation' to mean a healthcare provider organisation that is a corporation to which paragraph 52(xx) of the Constitution applies and of a kind specified in the My Health Records rules.

My Health Records rules.¹⁶ The minister's second reading speech indicates that the information intended to be specified in the My Health Records rules would initially be pathology and diagnostic imaging, with the intention that this will expand over time.¹⁷

1.4 The bill would establish a number of exceptions to these requirements. A healthcare provider would not be required to share information with the My Health Record system where: an upload exception applies; another entity has shared the information with the My Health Record system; a law of a state or territory prescribed by the regulations prevents the sharing of the information; the information or the healthcare provider organisation is specified in the My Health Record rules; or the period within which the information is required to be shared with the My Health Record system has ended.¹⁸ Further, a particular healthcare information or a healthcare record would not be required to be uploaded where: the individual is not registered in the My Health Record system; the individual (or authorised or nominated representative) has advised the entity that the information not be uploaded to the My Health Record system; an individual healthcare provider reasonably believes that the information should not be shared with the My Health Record system because of a serious concern for the health, safety or wellbeing of the individual; or the information cannot be shared due to circumstances beyond the reasonable control of the entity.¹⁹

1.5 Where a prescribed healthcare provider organisation did not meet these requirements, they would be subject to a civil penalty of 30 penalty units (currently \$9,900)²⁰ and would not be eligible to receive a Medicare benefit for the service provided.²¹

International human rights legal advice

Right to privacy

1.6 The committee has previously considered that, notwithstanding the legitimate objective of the My Health Record scheme, the scheme in its opt-out form is likely incompatible with the right to privacy.²² Since that time, the scheme was amended to provide that if a person cancelled their My Health Record, that record (and all contents) is required to be destroyed, which assists with the proportionality of the scheme overall.²³ By requiring registered healthcare providers to upload types of

¹⁶ Schedule 1, item 16, proposed section 78A.

¹⁷ Mr Mark Butler MP, Minister for Health and Aged Care, [House of Representatives Hansard](#), 21 November 2024.

¹⁸ Schedule 1, item 16, proposed subsection 78A(3).

¹⁹ Schedule 1, item 4, proposed section 10B.

²⁰ Schedule 1, item 16, proposed subsections 78A(1) and (2).

²¹ Schedule 1, item 26, proposed section 19AD. Healthcare recipients are unaffected by a healthcare provider's non-compliance regarding receipt of any Medicare rebate.

²² Parliamentary Joint Committee on Human Rights, *Report 4 of 2018* (8 May 2018) pp. 134-144.

²³ My Health Records Amendment (Strengthening Privacy) Bill 2018.

healthcare information to be specified in the My Health Records rules, this bill also engages and limits the right to privacy.

1.7 The right to privacy includes respect for informational privacy, including the right to respect for private and confidential information, particularly the storing, use and sharing of such information.²⁴ It also includes the right to control the dissemination of information about one's private life. The right to privacy may be subject to permissible limitations where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

1.8 The statement of compatibility identifies that the measure engages and limits the right to privacy. It states that the measure aims 'to achieve the legitimate objective of assuring the consistency and completeness of key health information as well as improved access to a healthcare recipient's own information'.²⁵ Improving the healthcare of Australians by providing a system for individuals and their healthcare providers to more efficiently share and access their health information is likely a legitimate objective for the purposes of international human rights law. Requiring healthcare providers to upload specified information by default so that more health information is accessible on the system also appears to be rationally connected to (that is, effective to achieve) that objective.

1.9 A key aspect of whether a limitation on a right can be justified is whether the limitation is proportionate to the objective being sought. In this respect, it is necessary to consider a number of factors, including whether a proposed limitation is sufficiently circumscribed; whether it is accompanied by sufficient safeguards; and whether any less rights restrictive alternatives could achieve the same stated objective.

1.10 As to whether the measure is sufficiently circumscribed, the statement of compatibility states that the bill provides exceptions to the share by default requirements. Specifically, the bill continues the current practice that information cannot be uploaded to an individual's My Health Record against their wishes.²⁶ Requiring an individual's consent for the upload of their information greatly assists with the proportionality of the measure. However, it is unclear how individuals would be made aware that they can opt out of My Health Record or that they can tell their healthcare providers not to upload specific information and records. It is also unclear, in practice, how straightforward this process would be. Further, the bill provides that prescribed healthcare providers must display a notice when they are *not* sharing information with the My Health Record system,²⁷ but it is unclear whether it would be apparent to a healthcare recipient that their healthcare provider *is* sharing information

²⁴ International Covenant on Civil and Political Rights, article 17.

²⁵ Statement of compatibility, p.6.

²⁶ Statement of compatibility, p. 6.

²⁷ Schedule 1, item 16, proposed section 78D.

with the My Health Record system. The sharing of information by default provisions does not require the informed consent of a person and would instead require an individual (or their nominated representative) to advise not to upload the information.

1.11 As to safeguards, the bill introduces a discretion that can be exercised by healthcare providers to not upload an individual's health information where it would be detrimental to the individual's health, safety or wellbeing.²⁸ However, it is unclear when this discretion may be exercised, the kinds of circumstances in which it is intended to operate, or how the healthcare provider may make such an assessment. It is also unclear whether this discretion may have the effect of discriminating against particular groups in practice (for example, people with a developmental disability or cognitive impairment). Some questions also arise as to the necessity of the measure, as it would appear that individuals may be able to access health information or records via other means.

1.12 In relation to whether any less rights restrictive alternatives are available, the committee has previously stated that opt-in arrangements coupled with education for healthcare professionals would appear to be a reasonably available less rights restrictive alternative.²⁹ While this bill does not expand the scope of individuals with a My Health Record, and individuals can opt-out of the system at any time (a process which results in the destruction of their My Health Records), an opt-in model remains a less rights restrictive alternative. Alternatively, it would appear that ensuring that individuals must be made aware that they can opt out of My Health Record, and requiring healthcare providers to make it clear that information is being uploaded to My Health Record and that a healthcare recipient can choose not to have specified information uploaded, would also be less rights restrictive and still capable of achieving the objectives of the measure.

Committee view

1.13 The committee notes that it has previously considered that, notwithstanding the legitimate objective of the My Health Record scheme, the scheme in its opt-out form is likely incompatible with the right to privacy.³⁰ The committee notes that the scheme has been amended to provide that if a person cancels their My Health Record, that record (and all contents) is required to be destroyed, which assists with the proportionality of the scheme overall.³¹

1.14 The committee notes that this bill would require registered healthcare providers to upload types of healthcare information to be specified in the My Health Records rules. The committee notes that the policy intention is for this to initially relate to pathology and diagnostic imaging information, but that nothing in the bill

²⁸ Statement of compatibility, p. 6.

²⁹ Parliamentary Joint Committee on Human Rights, *Report 4 of 2018* (8 May 2018) p. 143.

³⁰ Parliamentary Joint Committee on Human Rights, *Report 4 of 2018* (8 May 2018) pp. 134-144.

³¹ My Health Records Amendment (Strengthening Privacy) Bill 2018.

would restrict the scope of affected information in this way. The committee notes that this measure engages and limits the right to privacy.

1.15 The committee considers that, while requiring healthcare providers to upload specified information to the system by default may enhance the utility of the My Health Record scheme, in order to be a proportionate limitation on the right to privacy individuals should be made aware that they can opt-out of My Health Record, or advise their healthcare provider not to upload certain records. The committee considers that it is unclear how straightforward that process would be in practice. Further, the committee considers that it is not clear how and when a healthcare provider may judge that information should not be uploaded on the basis it may put a person's health, safety or wellbeing at risk, and as such the committee considers that this discretion may provide little safeguard value in practice and that there may be a risk that this results in discrimination against particular groups in practice, such as persons with a disability and/or First Nations people.

Suggested action

1.16 The committee considers the proportionality of this measure may be assisted were the bill amended to require prescribed healthcare provider organisations to display a notice when they are sharing information with the My Health Record system and require them to advise healthcare recipients that they can choose for certain information to not be uploaded to the My Health Record system.

1.17 The committee recommends that the statement of compatibility be updated to provide further information about the discretion of healthcare providers not to upload information where it may put an individual's health, safety or wellbeing at risk, the circumstances in which this is intended to occur, and how such an assessment would occur in practice.

1.18 The committee draws these human rights concerns to the attention of the minister and the Parliament.

Data matching

1.19 The *National Health Act 1953* (National Health Act) currently provides that the Chief Executive Medicare may match data for certain permitted purposes;³² these do not permit the matching of data that includes My Health Record information.³³ The bill would repeal and replace the definition of 'permitted purpose' in the National Health Act to provide that, in addition to the current permitted purposes, each of the

³² *National Health Act 1953*, section 132B.

³³ *National Health Act 1953*, section 132A.

following is a permitted purpose for the matching of data that includes My Health Record information:

- identifying whether a person may have, under a Medicare program, claimed or been paid a benefit in relation to a share by default service³⁴ that exceeds the amount of the benefit that was payable to the person;
- recovering overpayments of benefits under a Medicare program in relation to share by default services;
- detecting or investigating contraventions of a law of the Commonwealth relating to share by default services;
- analysing services, benefits, programs or facilities that are provided for under a Medicare program, in connection with the above purposes; and
- educating healthcare providers about requirements in relation to share by default service.³⁵

International human rights legal advice

Right to privacy

1.20 By providing for additional permitted purposes for which data can be matched and shared, including personal information, the measure engages the right to privacy. The right to privacy is set out above.

1.21 The statement of compatibility identifies that this measure engages the right to privacy, stating that it is ‘necessary to effectively manage compliance with the share by default requirements’.³⁶ It states that information contained in an individual’s My Health Record shared for compliance purposes will be a limited set of data, sufficient to establish compliance, with relevant data to be set out in rules. However, the statement of compatibility provides no further information as to whether and how this would constitute a proportionate limit on the right to privacy. While a note to the provision states that the *Privacy Act 1988* applies to information shared under the National Health Act, no further information is provided in the explanatory materials as to the specific legislative safeguards in the Privacy Act, or to existing legislative safeguards in the National Health Act (or related delegated legislation).³⁷

³⁴ A share by default service is a service that is required to share information by default to My Health Record under this bill and rules.

³⁵ Schedule 2, item 19, proposed section 132AB.

³⁶ Statement of compatibility, p. 7.

³⁷ See, for example, *National Health Act 1973*, sections 132E and 132F, which set out the application of the Privacy Act, and require the Minister to make data-matching principles by legislative instrument.

Committee view

1.22 The committee notes that the bill seeks to amend the *National Health Act 1953* to provide that the Chief Executive Medicare may match and share information, including My Health Record information.

1.23 The committee considers that data matching engages and limits the right to privacy. The committee considers that it would appear that the sharing of data in these circumstances would likely pursue a legitimate objective of ensuring the integrity of the Medicare system, and notes that there are legislative safeguards which would apply to the sharing of such information. However, the committee considers that the information contained in the statement of compatibility does not sufficiently outline the existence of those legislative safeguards or otherwise provide a fulsome assessment of the compatibility of the measures with the right to privacy.

Suggested action

1.24 The committee recommends that the statement of compatibility be updated to provide further information about the expanded data matching permitted purposes under proposed section 132AB of the *National Health Act 1953*, and provide a more fulsome assessment of the compatibility of the measure with the right to privacy.

1.25 The committee draws these human rights concerns to the attention of the minister and the Parliament.

Surveillance Legislation (Confirmation of Application) Bill 2024³⁸

Purpose	Provide that information or a record obtained under specified warrants under the <i>Crimes Act 1914</i> and <i>Surveillance Devices Act 2004</i> was not intercepted while passing over a telecommunications system and was lawfully obtained under those warrants
Portfolio	Attorney-General
Introduced	House of Representatives, 21 November 2024 <i>Received Royal Assent 10 December 2024</i>
Rights	Privacy; fair trial

Retrospective validation of warrants

1.26 This bill (now Act) provides that information or a record obtained under ten specified warrants issued to the Australian Federal Police under the *Crimes Act 1914* and *Surveillance Devices Act 2004* was not intercepted while passing over a telecommunications system and was lawfully obtained under those warrants. That is, it ‘confirms’ that information was not obtained by ‘interception’,³⁹ and was obtained under a warrant.⁴⁰ The Act also provides that such information, or a record obtained, is taken to have been, and to always have been, obtained under a relevant warrant, defined as ten specified warrants issued under the *Surveillance Devices Act 2004*. These provisions apply to civil and criminal proceedings instituted or concluded before, on or after the commencement of the Act.⁴¹ The effect of these provisions is therefore to retrospectively validate the collection of information or making of a record as always to have been done under a warrant rather than intercepted or collected in a manner that might be considered wholly or partly invalid or unlawful.

1.27 The ten warrants in question were issued in connection with ‘Operation Ironside’, a covert investigation into transnational serious and organised crime between 2018 and 2021. In the course of this operation, police used an application called ‘ANOM’ to gain access to electronic communications between alleged criminals:

These communications are generally in the form of text messages alleged to have been written or received by the defendants using mobile devices

³⁸ This entry can be cited as: Parliamentary Joint Committee on Human Rights, Surveillance Legislation (Confirmation of Application) Bill 2024, *Report 1 of 2025*; [2025] AUPJCHR 4.

³⁹ Section 5.

⁴⁰ Section 6.

⁴¹ Section 7.

which were enabled with a software application known as **the ANOM application**. The ANOM application was an encrypted communications application which was installed on mobile devices programmed and enabled for that purpose. It not only permitted communications between users of the ANOM application, but also copied those communications without the users' knowledge. The ANOM system then operated to ensure that copies of the users' communications were ultimately transmitted to servers at the Google data centre in Sydney, and able to be accessed by the AFP. Evidence of the ANOM communications was able to be retrieved by the AFP from these servers, pursuant to various surveillance device warrants and computer access warrants issued under the SD Act.⁴²

1.28 It has been reported that pursuant to this operation, over 390 people were charged with over 2,000 crimes.⁴³ Some defendants applied to the court for certain evidence to be excluded from the prosecution, arguing that the operation of the ANOM application and platform involved 'interception' of communications passing over a telecommunications system, contrary to subsection 7(1) of the *Telecommunications (Interception) Act 1979* (TIAA). Section 7 of the TIAA prohibits the interception of communications passing over a telecommunications system,⁴⁴ unless, relevantly, a warrant is obtained to intercept the communication.⁴⁵ The evidence which the defendants sought to exclude from use in their criminal trials was collected without such a warrant. The Supreme Court of South Australia found that operation of the ANOM application and platform did not involve an interception of the ANOM communications in contravention of subsection 7(1) of the TIAA, and that the evidence obtained as a result of the operation of the ANOM application was therefore admissible in the defendants' criminal trials.⁴⁶ The Court of Appeal to determine (relating to whether the application in question involved an 'interception').⁴⁷ The Court of Appeal confirmed these findings.⁴⁸

1.29 The defendants were granted special leave to appeal the decision of the Court of Appeal to the High Court of Australia on 7 November 2024.⁴⁹ It would appear that the passing of this Act effectively negates the basis for that legal challenge.

⁴² *Questions of Law Reserved (1 and 2 of 2023)* [2024] SASCA 82 (27 June 2024) [10].

⁴³ David Estcourt and Mahmood Fazal, 'Top lawyers question law that stops Operation Ironside High Court challenge', *ABC News*, 18 December 2024.

⁴⁴ TIAA, subsection 7(1).

⁴⁵ TIAA, subsection 7(2)(b).

⁴⁶ *R v TB (No 1)* [2023] SASC 45.

⁴⁷ *Questions of Law Reserved (1 and 2 of 2023)* [2024] SASCA 82 (27 June 2024) [156].

⁴⁸ *Questions of Law Reserved (1 and 2 of 2023)* [2024] SASCA 82 (27 June 2024).

⁴⁹ High Court of Australia, [results of applications for special leave to appeal](#) (7 November 2024).

International human rights legal advice

Rights to privacy and fair trial

1.30 This legislation confirms the interpretation of the law set out in the decisions of the Supreme Court of South Australia and the Court of Appeal of South Australia, and so, as the statement of compatibility notes, it ‘does not alter the current legal position’.⁵⁰ However, there is a possibility that, on hearing the defendants’ appeal, the High Court of Australia may have adopted a different interpretation and required the evidence in question to be excluded from use in the defendants’ criminal trials. In that case, the legislation alters the defendants’ legal position in ways which limit their rights to privacy and to a fair trial.

1.31 The right to privacy includes respect for informational privacy, including the right to respect for private and confidential information, particularly the storing, use and sharing of such information.⁵¹ The statement of compatibility notes that the bill engages the right to privacy as ‘it clarifies the legality of actions...which impacted privacy’,⁵² namely the interception of the defendants’ private communications, which limited their right to privacy. While the right to privacy may be permissibly limited, any limitation must be prescribed by law (meaning that it must have a clear basis in law). If (in the absence of this legislation) the High Court were to find that the defendants’ communications were intercepted contrary to section 7 of the TIAA, and were therefore intercepted unlawfully, then the limit on the defendants’ right to privacy would not have been ‘prescribed by law’ and the interception would therefore constitute a violation of that right. In such a case, this legislation would be retrospectively authorising a violation of the defendants’ right to privacy. It would also be removing any possibility of the defendants seeking a remedy for the unlawful interference with their privacy, raising concerns regarding their right to an effective remedy.⁵³

1.32 The right to a fair trial and fair hearing applies to both criminal and civil proceedings, to cases before both courts and tribunals. The right is concerned with procedural fairness, and encompasses notions of equality in proceedings, the right to a public hearing and the requirement that hearings are conducted by an independent and impartial body.⁵⁴ The right may require the exclusion of evidence from a trial if

⁵⁰ Statement of compatibility [22].

⁵¹ International Covenant on Civil and Political Rights, article 17.

⁵² Statement of compatibility, p. 5.

⁵³ The right to an effective remedy requires the availability of a remedy which is effective with respect to any violation of rights and freedoms recognised by the International Covenant on Civil and Political Rights. While limitations may be placed in particular circumstances on the nature of the remedy provided (judicial or otherwise), states parties must comply with the fundamental obligation to provide a remedy that is effective. International Covenant on Civil and Political Rights, article 2(3).

⁵⁴ UN Convention on Civil and Political Rights, article 14.

doing so is necessary to ensure the trial is fair: it must be considered ‘whether the proceedings as a whole, including the way in which the evidence was obtained, was fair’.⁵⁵

1.33 The statement of compatibility states that the Act engages the right to a fair trial. It states that the Act clarifies the interpretation of the law and may therefore potentially impact upon defendants’ right to a fair trial and hearing.⁵⁶ It states that ‘The extent of any engagement with a defendant’s right to a fair trial and hearing is limited’, noting that it operates consistently with the decision made by the Courts at first instance and on appeal, and so ‘does not alter the current legal position’.

1.34 It further states that the Act ‘does not affect the ability of the Courts to adjudicate or punish criminal guilt. Rather, [it] facilitates the admission of evidence of material facts in aid of correct fact finding’.⁵⁷ It states that the Act constitutes ‘a reasonable limitation as it has a very clear connection to the policy objective, and it is sufficiently precise given its targeted scope and proportionate as it will only affect certain specified Operation Ironside warrants’. It also argues that by clarifying the legal status of information obtained under relevant warrants, the Act ‘will achieve certainty for pending criminal prosecutions, and therefore allow other matters to be heard expeditiously, thereby promoting the right to a fair trial in other respects’.⁵⁸

1.35 While elements of the right to a fair trial may be subject to permissible limitations,⁵⁹ the requirement of competence, independence and impartiality of a tribunal is absolute and may not be subject to any exception.⁶⁰ The requirement of independence requires:

actual independence of the judiciary from political interference by the executive branch and legislature...A situation where the functions and competencies of the judiciary and the executive are not clearly distinguishable or where the latter is able to control or direct the former is incompatible with the notion of independent tribunal.⁶¹

⁵⁵ *Jalloh v Germany* (2007) 44 EHRR 32 at [95]. See also *Aleksandr Zaichenko v. Russia*, Application no. 39660/02, 18 February 2010.

⁵⁶ Statement of compatibility, p. 6.

⁵⁷ Statement of compatibility, p. 7.

⁵⁸ Statement of compatibility, p. 7.

⁵⁹ Namely, for reasons of morals, public order or national security in a democratic society, or when the interest of the private lives of the parties. International Covenant on Civil and Political Rights, article 14(1).

⁶⁰ UN Human Rights Committee, *General Comment 32: Article 14, Right to Equality before Courts and Tribunals and to Fair Trial* (2007) [19].

⁶¹ UN Human Rights Committee, *General Comment 32: Article 14, Right to Equality before Courts and Tribunals and to Fair Trial* (2007) [19]. See also *Bahamonde v Equatorial Guinea*, UN Human Rights Committee, Communication No. 468/1991, CCPR/C/49/D/468/1991.

1.36 In this case, the legislature has passed legislation with the specific purpose of affecting the outcome of a case currently before the High Court of Australia (and, consequently, criminal trials currently pending before the courts). If, in the absence of this legislation, the High Court would have found the interception of the defendants' communications to be unlawful, and therefore the communications inadmissible in their criminal trials, then the effect of this legislation is to interfere with that decision and render the interceptions lawful and the communications admissible. This raises concerns of interference by the legislature with the decision-making of the judiciary.

1.37 This scenario raises a further concern from the perspective of the right to a fair trial, namely that the effect of the legislation may be to render admissible evidence that would otherwise have been inadmissible in the defendants' trials. The European Court of Human Rights has relevantly observed that, while member states are generally free to devise their own rules regarding the admissibility of evidence, the right to a fair trial under the European Convention on Human Rights establishes basic standards which must be met in order for a trial to be fair. The court's jurisprudence indicates that it will assess the fairness of proceedings as a whole, having regard to several considerations including: the opportunities afforded the accused to challenge the authenticity and oppose the use or admissibility of the evidence; whether the domestic court had the power to exclude the evidence if it were minded to do so; and the role which the wrongfully obtained evidence played in supporting any guilty verdict.⁶² In this case, there would seem to be an argument that the legislation, which may have the effect of requiring the courts to include evidence against the defendants that the courts would otherwise have been required to exclude (if the High Court had found differently from the Court of Appeal), creates unfairness by retrospectively depriving the defendants of legal protections to which they would otherwise have been entitled. Further, the jurisprudence of the European Court of Human Rights suggests that failure to exclude evidence which has been obtained in violation of other human rights may give rise to unfairness, contrary to the right to a fair trial. If the effect of the legislation were to render admissible evidence obtained in violation of the right to privacy (as discussed above), this would support the argument that the legislation, by rendering that evidence admissible, would interfere with the defendants' right to a fair trial.

1.38 In conclusion, there is a risk that if, in the absence of this legislation, the High Court would have found that the interception of the defendants' communications was unlawful, then this legislation, by retrospectively authorising the interception and rendering the communications admissible in the defendants' criminal trials, may impermissibly limit the right to privacy and right to a fair trial.

⁶² See, for example, *Gafgen v Germany* (2011) 52 EHRR 1. See further, Ben Emmerson et al, *Human Rights and Criminal Justice* 3rd edn., London 2012.

Committee view

1.39 The committee notes that this bill (now Act) was introduced to confirm that information obtained under warrants issued in relation to Operation Ironside, an investigation into serious transnational organised crime, was not obtained by 'interception', and was obtained under a warrant. The committee notes that this legislation serves the important purpose of supporting the legal system to address serious transnational organised crime.

1.40 The committee further notes that the Act is consistent with the interpretation of the law adopted by the Court of Appeal of South Australia and so does not alter the current state of the law. However, the committee considers that there is a risk that, if (absent this legislation) the outcome of the pending High Court of Australia appeal were to have been inconsistent with the decision of the Court of Appeal, then the effect of the Act would be to alter the current state of the law. The committee notes that in that case, the effect of the Act would be to retrospectively authorise the unlawful interception of the defendants' private communications. The committee considers that there is therefore a risk that the Act could impermissibly limit the right to privacy.

1.41 The committee further notes that in the situation outlined in the previous paragraph, the Act would directly affect the outcome of a case currently pending before the High Court of Australia (and indirectly affect the outcome of various pending criminal trials). The committee considers there is a risk that this would constitute an impermissible interference with the independence and impartiality of the judiciary, an element of the right to a fair trial. The committee also considers that retrospectively rendering evidence admissible, if the evidence was obtained unlawfully and in violation of the right to privacy, would raise further concerns from the perspective of the right to a fair trial.

1.42 However, as the bill has now passed, the committee makes no further comment in relation to this legislation.

Legislative instruments

Autonomous Sanctions Amendment (Periodic Legislative Review) Regulations 2024⁶³

FRL No.	F2024L01418
Purpose	The instrument amends the Autonomous Sanctions Regulations 2011 to insert a five-yearly review requirement and repeal the automatic expiry of: designations of persons and entities; designations of controlled assets; designations of sanctioned vessels; and declarations of persons as subject to a travel ban.
Portfolio	Foreign Affairs
Authorising legislation	<i>Autonomous Sanctions Act 2011</i>
Disallowance	15 sitting days after tabling (tabled in the House of Representatives and the Senate on 18 November 2024. Notice of motion to disallow must be given by 25 March 2025 in the House and in the Senate) ⁶⁴
Rights	Fair hearing; privacy; protection of the family; adequate standard of living; freedom of movement

Repeal of automatic expiry of autonomous sanctions listings

1.43 The Autonomous Sanctions Regulations 2011 (the regulations) previously provided that a designation of a person or entity or declaration of a person as subject to a travel ban to Australia (collectively, a listing) expired after three years, unless the minister declared (by legislative instrument) that the listing continued to have effect.⁶⁵ This instrument amends the regulations to repeal the automatic expiry of a listing after three years.⁶⁶ The effect is that a listing providing that a person is subject to a sanction or travel ban will continue indefinitely unless the minister decides to revoke it. Sanctions can apply to persons living in Australia or could apply to persons outside Australia.

⁶³ This entry can be cited as: Parliamentary Joint Committee on Human Rights, *Autonomous Sanctions Amendment (Periodic Legislative Review) Regulations 2024*, Report 1 of 2025; [2023] AUPJCHR 5.

⁶⁴ In the event of any change to the Senate or House's sitting days, the last day for the notice would change accordingly.

⁶⁵ *Autonomous Sanctions Regulations 2011*, regulation 9.

⁶⁶ Schedule 1, item 2, repeal of regulation 9.

1.44 The instrument also amends the regulations to provide that the minister must cause a review to be undertaken, every five years, of the operation of the autonomous sanctions legislative framework. This review is required to consider the effectiveness of the framework for achieving Australia's foreign policy objectives, and whether the *Autonomous Sanctions Act 2011* (the Act) and the regulations are appropriate for achieving the objects of the Act.⁶⁷

International human rights legal advice

Rights to a fair hearing; privacy; protection of the family; adequate standard of living; freedom of movement

1.45 This committee has, for over a decade, raised concerns regarding the human rights compatibility of the sanctions regime.⁶⁸ As the committee has previously set out, sanctions may operate variously to both limit and promote human rights. For example, sanctions prohibiting the proliferation of weapons of mass destruction will promote the right to life. Sanctions imposed to address serious violations or serious abuses of human rights could help to promote human rights globally.

1.46 The mandate of this committee is to consider whether legislation is compatible with Australia's international human rights obligations under seven core international human rights law treaties.⁶⁹ Under those treaties, Australia has an obligation to uphold human rights to all those within its jurisdiction.⁷⁰ As such, for persons designated or declared under the sanctions regime who are not in Australian territory, or otherwise under Australia's effective control, limited human rights obligations apply. On this basis, the committee's examination of Australia's sanctions regime has been, and is, focused on measures that impose restrictions on individuals that may be located in Australia. As the sanctions legislation empowers the minister to designate or declare a person within Australia as subject to the regime, it is

⁶⁷ Schedule 1, item 3, regulation 25A.

⁶⁸ This includes consideration of sanctions imposed under the *Autonomous Sanctions Act 2011* and the *Charter of the United Nations Act 1945*. See, most recently, Parliamentary Joint Committee on Human Rights, [Report 2 of 2024](#) (20 March 2024) pp. 15–20; [Report 1 of 2024](#) (7 February 2024) pp. 94–110; [Report 15 of 2021](#) (8 December 2021) pp. 2–11; See also [Report 2 of 2019](#) (2 April 2019) pp. 112–122; [Report 6 of 2018](#) (26 June 2018) pp. 104–131; [Report 4 of 2018](#) (8 May 2018) pp. 64–83; [Report 3 of 2018](#) (26 March 2018) pp. 82–96; [Report 9 of 2016](#) (22 November 2016) pp. 41–55; [Thirty-third Report of the 44th Parliament](#) (2 February 2016) pp. 17–25; [Twenty-eighth Report of the 44th Parliament](#) (17 September 2015) pp. 15–38; [Tenth Report of 2013](#) (26 June 2013) pp. 13–19; and [Sixth Report of 2013](#) (15 May 2013) pp. 135–137.

⁶⁹ *Human Rights (Parliamentary Scrutiny) Act 2011*.

⁷⁰ For instance, article 2(1) of the International Covenant on Civil and Political Rights requires states parties 'to respect and to ensure to all individuals within its territory and subject to its jurisdiction the rights recognized in the present Covenant'.

necessary for the committee to consider the compatibility of the sanctions regime with human rights as it may apply to persons in Australia.

1.47 A person who is subject to a sanction (a listed person) commits an offence for using or dealing with a controlled asset (unless it is an authorised dealing).⁷¹ It is also an offence for someone to make an asset directly or indirectly available to, or for the benefit of, a listed person.⁷² As a result, a person's assets are effectively 'frozen'. For example, a financial institution is prohibited from allowing a listed person to access their bank account. The sanctions scheme provides that the minister may grant a permit authorising the making available of certain assets to a designated person.⁷³ However, an application for a permit can only be made for basic expenses, to satisfy a legal judgment or where a payment is contractually required.⁷⁴ A basic expense includes foodstuffs; rent or mortgage; medicines or medical treatment; public utility charges; insurance; taxes; legal fees and reasonable professional fees.⁷⁵ The scheme also enables the minister to declare that persons are subject to a travel ban, which would prevent the person from travelling to, entering or remaining in Australia.⁷⁶

1.48 The designation or declaration of a person in Australia under the sanctions regime may therefore limit a range of human rights, in particular the right to a private life and right to a fair hearing. It may also limit the right to an adequate standard of living, protection of the family, and freedom of movement.

1.49 The right to privacy prohibits arbitrary or unlawful interference with an individual's privacy, family, correspondence or home.⁷⁷ The freezing of a person's assets and the requirement for a listed person to seek the permission of the minister to access their funds for basic expenses imposes a limit on that person's right to a private life, and may also limit the right to privacy of close family members of a listed person.

1.50 The right to a fair hearing applies both to criminal and civil proceedings, to cases before both courts and tribunals.⁷⁸ The right applies where rights and obligations, such as personal property and other private rights, are to be determined. In order to constitute a fair hearing, the hearing must be conducted by an independent and impartial court or tribunal, before which all parties are equal and have a reasonable opportunity to present their case. Ordinarily, the hearing must be public,

⁷¹ Autonomous Sanctions Regulations 2011, regulation 15.

⁷² Autonomous Sanctions Regulations 2011, regulation 14.

⁷³ Autonomous Sanctions Regulations 2011, regulation 18.

⁷⁴ Autonomous Sanctions Regulations 2011, regulation 20.

⁷⁵ Autonomous Sanctions Regulations 2011, paragraph 20(3)(b).

⁷⁶ Autonomous Sanctions Regulations 2011, paragraphs 6(1)(b) and (2)(b).

⁷⁷ International Covenant on Civil and Political Rights, article 17.

⁷⁸ International Covenant on Civil and Political Rights, article 14.

but in certain circumstances, a fair hearing may be conducted in private. The European Court of Human Rights has emphasised the importance of protecting the right to a fair hearing in the context of sanctions regimes, stating:

in view of the seriousness of the consequences for the [European] Convention rights of those [listed] persons, where a resolution such as that in the present case, namely [UN Security Council] Resolution 1483 [which required the freezing of the assets and property of senior officials of the former Iraqi regime], does not contain any clear or explicit wording excluding the possibility of judicial supervision of the measures taken for its implementation, it must always be understood as authorising the courts of the respondent State to exercise sufficient scrutiny so that any arbitrariness can be avoided. By limiting that scrutiny to arbitrariness, the Court takes account of the nature and purpose of the measures provided for by the Resolution in question, in order to strike a fair balance between the necessity of ensuring respect for human rights and the imperatives of the protection of international peace and security.⁷⁹

1.51 These rights may be subject to permissible limitations where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

1.52 The statement of compatibility states, in relation to the right to a fair hearing, that the measure:

furtheres the legitimate objectives of aligning Australia's approach to listings with the approach of key international partners and allowing the department to redirect resources to other sanctions priorities, including: making new sanctions listings in coordination with international partners; monitoring and enforcing existing sanctions; and strengthening internal review processes. These objectives are pressing and substantial because they will strengthen the effectiveness of Australia's autonomous sanctions.⁸⁰

1.53 The statement of compatibility further states that the measure is rationally connected to this objective as the process for reviewing listings is resource intensive and reduces the department's capacity to progress other sanctions priorities (including monitoring and enforcing sanctions).⁸¹ It states that historically, approximately 87 percent of listings have been continued following their review.

1.54 A legitimate objective is one that is necessary and addresses an issue of public or social concern that is pressing and substantial enough to warrant limiting the right. The committee has previously considered that the use of the sanctions regime broadly

⁷⁹ *Al-Dulimi and Montana Management Inc. v Switzerland*, European Court of Human Rights (Grand Chamber) Application No.5809/08 (2016) [146].

⁸⁰ Statement of compatibility, p. 5.

⁸¹ Statement of compatibility, p. 5.

to apply pressure to governments and individuals in order to end the repression of human rights is likely a legitimate objective for the purposes of international human rights law. However, the objective of this instrument (the allocation of departmental resources) appears to relate primarily to administrative convenience rather than addressing a substantive pressing and substantial concern. Further, seeking to align Australia's approach with that of international partners may not constitute a legitimate objective, in particular if the approaches of partners were not themselves consistent with international human rights law.⁸²

1.55 A key aspect of whether a limitation on a right can be justified is whether the limitation is proportionate to the objective being sought. In this respect, it is necessary to consider whether a proposed limitation is sufficiently circumscribed, whether it is accompanied by sufficient safeguards, and whether any less rights restrictive alternatives could achieve the same stated objective. The committee has previously raised concerns that the Australian sanctions regime itself may not be regarded as proportionate, in particular because of a lack of effective safeguards to ensure that the regime, given its potential serious effects on those subject to it, is not applied in error or in a manner which is overly broad in the individual circumstances.⁸³

1.56 As to whether this measure is sufficiently circumscribed, the statement of compatibility states that listed persons may apply to the minister at any time to revoke a listing and the minister has the power to revoke a listing upon application by a designated person, or on the minister's own initiative.⁸⁴ However, a listing is at the discretion of the minister without specific criteria as to how the minister determines these matters. The minister may designate or declare a person as subject to sanctions on the basis that the minister is 'satisfied' of a number of broadly defined matters, with no legislative criteria as to how the minister determines these matters.⁸⁵ The minister can make a designation or declaration without hearing from the affected person before the decision is made, and there is no requirement for reasons to be provided to the affected person. With respect to oversight, there is no review of the minister's decision to grant, or not grant, a permit allowing access to funds, or review of any conditions imposed. Further, while a person may apply to have their listing

⁸² In this regard it is noted that commentary has been made regarding the sanctions regimes in the United Kingdom and Canada, and the frequency of sanctions reviews. See, for example, commentary by the United Kingdom Joint Committee on Human Rights, [Legislative Scrutiny: The Sanctions and Anti-Money Laundering Bill](#), March 2018, p. 5, recommending annual reviews of designation decisions; and Canada's Standing Committee on Foreign Affairs and International Development, [Canada's Sanctions Regime: Transparency, Accountability and Effectiveness](#), January 2024, p. 52, recommending 'review of autonomous sanctions on a regular basis to ensure...designations remain appropriate'.

⁸³ See, for example, Parliamentary Joint Committee on Human Rights, [Report 15 of 2021](#) (8 December 2021), p. 104.

⁸⁴ Statement of compatibility, p. 6.

⁸⁵ Autonomous Sanctions Regulations 2011, regulation 6.

revoked, the minister is not required to consider an application if the listed person has made an application within the year.⁸⁶

1.57 In relation to the availability of safeguards, the statement of compatibility states that judicial review is available of a listing decision in an Australian court.⁸⁷ While judicial review remains available, external merits review before a court or tribunal of the minister's decision to list an individual is not. Judicial review in Australia represents a limited form of review in that it allows a court to consider only whether the decision was lawful (that is, within the power of the relevant decision maker). The court cannot undertake a full review of the facts (that is, the merits), as well as the law and policy aspects of the original decision to determine whether the decision is the correct or preferable decision. The availability of judicial review in this context, alongside a lack of merits review, will generally be insufficient, in and of itself, to operate as an adequate safeguard.

1.58 The statement of compatibility states that a further safeguard is that the department intends to conduct periodic internal reviews to confirm listings remain appropriate.⁸⁸ However, there is no legislative basis requiring the conduct of such internal reviews, it is unclear how frequently they may occur, and there is no requirement for the minister to reconsider a listing even if the department recommends a listing be revoked. As such, this appears to offer limited safeguard value. The prior automatic expiry of a listing every three years, unless declared to continue, required the minister to actively determine that a sanctions listing should be continued. The removal of this automatic process every three years removes this potential safeguard. As matter of law, there is now no requirement to ever review a sanction once it is in place, even if circumstances change or new evidence comes to light.

1.59 While the instrument would require a review of the operation of the autonomous sanctions legislative framework be undertaken every five years, it is not clear what safeguard value this measure would offer with respect to human rights in practice. The review would be required to examine the broad effectiveness of the framework as a whole in achieving Australia's foreign policy objectives,⁸⁹ and would not be required to include an analysis of the framework's compatibility with international human rights law or the impacts of sanctions on the human rights of individuals.

1.60 As to whether there may be less rights restrictive measures to achieve the same objectives, the statement of compatibility states that there are no alternative

⁸⁶ Autonomous Sanctions Regulations 2011, subregulation 11(3).

⁸⁷ Statement of compatibility, p. 6.

⁸⁸ Statement of compatibility, p. 6.

⁸⁹ Schedule 1, item 3, regulation 25A.

measures that would be less restrictive.⁹⁰ It states that amending the automatic expiry from three to five years would not align Australia's listing practice with the United States of America, the United Kingdom or Canada, and introducing a new review process would not reduce the significant administrative burden.⁹¹ However, this does not appear to explain why less rights restrictive alternatives (such as less frequent individual reviews) would be ineffective. In this regard, autonomous sanctions instruments are exempt from sunseting, a feature which was frequently justified on the basis that such listings are subject to a more stringent statutory review process.⁹² It is unclear why the usual sunseting process in the *Legislation Act 2003*, at a minimum, is not an appropriate safeguard to the minister's broad discretionary power. It is also unclear why extending the timeframe for expiry would not be a less rights restrictive alternative to mitigate the serious impact a listing would have on an individual's human rights by ensuring it remains appropriate.

1.61 As the committee has previously found, there is a risk that the autonomous sanctions regime may be incompatible with the right to a fair hearing, right to privacy, right to protection of the family, right to an adequate standard of living and the right to freedom of movement. In the absence of legislative amendments to restrict the application of the autonomous sanctions regime to only those located outside Australia, or to implement safeguards such as those previously recommended by the

⁹⁰ Statement of compatibility, p. 6.

⁹¹ Statement of compatibility, p. 6.

⁹² See, most recently, Autonomous Sanctions (Designated Persons and Entities and Declared Persons – Iran) Amendment (No. 3) Instrument 2024 [[F2024L01307](#)] in which the explanatory statement states '[t]he Amending Instrument is exempt from sunseting under table item 10B of section 12 of the *Legislation (Exemptions and Other Matters) Regulation 2015* on the basis that it is subject to a more stringent statutory review process than is set out in Part 4 of Chapter 3 of the *Legislation Act 2003*'.

committee,⁹³ removing the expiration of individual listings also risks being incompatible with those rights.

Committee view

1.62 The committee notes that this legislative instrument amends the Autonomous Sanctions Regulations 2011 to remove the automatic expiry of sanctions listings every three years and to provide for a review of the autonomous sanctions legislative framework every five years.

1.63 The committee considers that sanctions regimes operate as important mechanisms for applying pressure to regimes and individuals with a view to ending the repression of human rights internationally. The committee notes the importance of Australia acting in concert with the international community to prevent egregious human rights abuses arising from situations of international concern.

1.64 However, the committee regards it as important to recognise that the sanctions regime operates independently of the criminal justice system, and can be used regardless of whether a designated or declared person has been charged with or convicted of a criminal offence. For those in Australia who may be subject to sanctions, requiring ministerial permission to access money for basic expenses could, in practice, impact greatly on a person's private and family life. The committee notes that the minister, in making a designation or declaration, is not required to hear from the affected person at any time; or provide reasons; and there is no provision for merits review of any of the minister's decisions (including any decision to grant, or not grant, a permit allowing access to funds).

1.65 The committee has previously found that there is a risk that the autonomous sanctions regime may be incompatible with the right to a fair hearing, right to privacy, right to protection of the family, right to an adequate standard of living and the right

⁹³ The committee has previously recommended there be: (a) the provision of publicly available guidance in legislation setting out in detail the basis on which the minister decides to designate or declare a person; (b) regular reports to Parliament in relation to the sanctions regime including the basis on which persons have been designated or declared and what assets have been frozen, or the amount of assets; (c) provision for merits review before a court or tribunal of the minister's decision to designate or declare a person is subject to sanctions; (d) regular periodic reviews of designations and declarations; (e) automatic reconsideration of designations and declarations if new evidence or information comes to light; (f) limits on the power of the minister to impose conditions on a permit for access to funds to meet basic expenses; (g) review of individual designations and declarations by the Independent National Security Legislation Monitor; (h) provision that any prohibition on making funds available does not apply to social security payments to family members of a designated person (to protect those family members); and (i) consultation with operational partners such as the police regarding other alternatives to the imposition of sanctions. See most recently Parliamentary Joint Committee on Human Rights, [Report 1 of 2024](#) (7 February 2024) pp. 94–110; See also [Report 9 of 2016](#) (22 November 2016) p. 53; [Report 6 of 2018](#) (26 June 2018) pp. 128–129; and [Report 2 of 2019](#) (2 April 2019) p. 122.

to freedom of movement. The committee considers that removing the automatic expiry of sanctions listings removes one aspect of the regime which had some potential safeguard value. The committee considers that the broader five year review the legislative instrument provides for may have very limited safeguard value with respect to human rights.

1.66 The committee reiterates its long-held view that the compatibility of the sanctions regime may be assisted were the autonomous sanctions legislation amended to include the safeguards previously recommended by the committee.⁹⁴

Suggested action

1.67 The committee considers the proportionality of this measure may be assisted were the legislative instrument amended to provide that each five-yearly review of the sanctions regime must:

- (a) assess the compatibility of the regime with international human rights law;
- (b) assess whether individual sanctions affecting any persons located (or suspected to be located) in Australia are compatible with Australia's international human rights law obligations; and
- (c) review individual sanctions listings of persons located (or suspected to be located) in Australia to assess whether there is sufficient evidence to justify the sanction remaining in place.

1.68 The committee recommends that the statement of compatibility be updated to provide an assessment of the compatibility of the measure with the rights to privacy, protection of the family, an adequate standard of living, and freedom of movement.

1.69 The committee draws these human rights concerns to the attention of the minister and the Parliament.

⁹⁴ See footnote 43, and most recently Parliamentary Joint Committee on Human Rights, [Report 1 of 2024](#) (7 February 2024) pp. 94–110; See also [Report 9 of 2016](#) (22 November 2016) p. 53; [Report 6 of 2018](#) (26 June 2018) pp. 128–129; and [Report 2 of 2019](#) (2 April 2019) p. 122.

Migration Amendment (Cessation and Grant of Bridging Visas) Regulations 2024⁹⁵

FRL No.	F2024L01595
Purpose	Amends the Migration Regulations 1994 to ensure that an individual, in respect of whom a Weapons of Mass Destruction determination exists, is subject to work and study restrictions on any bridging visas they hold.
Portfolio	<i>Home Affairs</i>
Authorising legislation	<i>Migration Act 1958</i>
Disallowance	15 sitting days after tabling (tabled in the House of Representatives and in the Senate on 4 February 2025. Notice of motion to disallow must be given by 15 April 2025 in the House and by 14 May 2025 in the Senate) ⁹⁶
Right	Education

Imposing visa conditions to prevent study or training

1.70 The Migration Amendment (Cessation and Grant of Bridging Visas) Regulations 2024 (the regulations) amend the Migration Regulations 1994 (Migration Regulations) to cease certain bridging visas held by a non-citizen where the minister or their delegate has determined the non-citizen is a person whose presence in Australia may be directly or indirectly associated with the proliferation of weapons of mass destruction (WMD).⁹⁷ On cessation of their bridging visa, the non-citizen is immediately granted a replacement Subclass 050 (Bridging (General)) visa with

⁹⁵ This entry can be cited as: Parliamentary Joint Committee on Human Rights, Migration Amendment (Cessation and Grant of Bridging Visas) Regulations 2024, *Report 1 of 2025*; [2023] AUPJCHR 6.

⁹⁶ In the event of any change to the Senate or House's sitting days, the last day for the notice would change accordingly.

⁹⁷ Schedule 1, item 18 of the regulations: A 'weapons of mass destruction determination' means a determination mentioned in any of the following provisions: sub-subparagraph 2.43(1)(a)(i)(B); subparagraph 2.43(1)(a)(ii); paragraph (b) of public interest criterion 4003 and public interest criterion 4003A.

mandatory conditions imposed to not undertake work in Australia without permission from the minister and to not engage in study or training in Australia.⁹⁸

International human rights legal advice

Right to education

1.71 By imposing a visa condition on individuals who have a WMD determination against them not to engage in any studies or training in Australia, this measure engages and limits the right to education.

1.72 The right to education provides that education should be accessible to all.⁹⁹ This requires that State parties recognise the right of everyone to education, and agree that education shall be directed to the full development of the human personality and sense of dignity, and shall strengthen respect for human rights and fundamental freedoms. States have a duty to refrain from taking retrogressive measures, or backwards steps, in relation to the realisation of the right to education.¹⁰⁰ The right to education may be subject to permissible limitations (noting that retrogressive measures are a type of limitation) where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

1.73 The statement of compatibility states that the amendments seek the legitimate objective of 'preventing the proliferation of WMD' which 'supports the protection of the Australian and international community'.¹⁰¹ Protecting the safety and security of the community is a legitimate objective for the purposes of international human rights law. Restricting an individual who has a WMD decision against them from working, studying or training, to the extent that they cannot undertake work or study in an area that may be relevant to the proliferation of WMD, also appears to be rationally connected to (that is, effective to achieve) that objective.

1.74 A key aspect of whether a limitation on a right can be justified is whether the limitation is proportionate to the objective being sought. In this respect, it is necessary to consider a number of factors, including whether a proposed limitation is sufficiently circumscribed; whether it is accompanied by sufficient safeguards; and whether any less rights restrictive alternatives could achieve the same stated objective.

⁹⁸ Schedule 1, item 26, new paragraph 050.616B(1)(c). Visa conditions are outlined in schedule 8 of the Migration Regulations 1994 – 8103 (the holder must not undertake work in Australia without permission in writing of the Minister, which may be in relation to specified work or for a specified time) and 8207 (the holder must not engage in any studies or training in Australia).

⁹⁹ International Covenant on Economic, Social and Cultural Rights, article 13.

¹⁰⁰ See, UN Committee on Economic, Social and Cultural Rights, *General Comment No.13: The right to education* (1999).

¹⁰¹ Statement of compatibility, p. 5.

1.75 As to whether the measure is sufficiently circumscribed, the minister appears to have a broad discretion under the regulations and the Migration Regulations as to whether an individual is a person whose presence in Australia may be directly or indirectly associated with the proliferation of WMD. The statement of compatibility states that ‘the Department of Foreign Affairs and Trade (DFAT) is the principal agency that assesses information in order to determine if a person’s presence in Australia may be associated with the proliferation of WMD’.¹⁰² It is unclear what information is considered by DFAT and it is unclear on what grounds an individual may have a WMD determination made against them by the minister. However, the explanatory materials indicate that a WMD determination is subject to merits and judicial review.¹⁰³ These have the capacity to provide important oversight of what otherwise appears to be a broad discretion.

1.76 As to whether the measure is the least rights restrictive alternative, a person subject to a WMD determination can seek the minister’s permission in writing to undertake specified work. The statement of compatibility states that ‘the condition is aimed at targeting only work of concern to provide the most minimally restrictive condition possible, while not precluding all work in Australia’.¹⁰⁴ However, there is no such discretion of the minister to permit an individual to undertake any study or training in any field while they are subject to these visa conditions. The statement of compatibility states that ‘this approach acknowledges that certain types of study or work in Australia could lead to the acquisition of knowledge that could enable an individual to assist in the proliferation of WMD’.¹⁰⁵ However, it is unclear why it is not appropriate to limit the prohibition on study specifically to the study area of concern rather than study or training of any kind, or to otherwise provide for a ministerial discretion to allow a person to undertake certain studies on a case-by-case basis. The statement of compatibility does not identify whether such a less rights restrictive alternative has been considered, and if so, why it was considered inappropriate.

1.77 Consequently, there may be a risk that this measure may not constitute a proportionate limit on the right to education.

Committee view

1.78 The committee notes that the regulations provide for the cessation of certain bridging visas held by a non-citizen, where the minister or their delegate has determined the non-citizen is a person whose presence in Australia may be directly or indirectly associated with the proliferation of WMD. The committee notes that on cessation of their bridging visa, the non-citizen is immediately granted a replacement Subclass 050 (Bridging (General)) visa with mandatory conditions imposed to not

¹⁰² Statement of compatibility, p. 4.

¹⁰³ Explanatory statement, p. 2.

¹⁰⁴ Statement of compatibility, p. 10.

¹⁰⁵ Statement of compatibility, p. 9.

undertake work in Australia without permission from the minister, and to not engage in study or training of any kind in Australia.

1.79 The committee notes that imposing a visa condition on individuals who have a WMD determination against them not to engage in any studies or training in Australia engages and limits the right to education.

1.80 The committee considers that the measure likely seeks a legitimate objective and is rationally connected to that objective. However, the committee considers that some questions remain as to the proportionality of the measure with the right to education. The committee notes that the minister has a broad discretion to make a WMD determination and that, while merits and judicial review appears to be available, it is unclear why other, less rights restrictive alternatives are not considered appropriate. In particular, the committee notes that, while an affected person may request permission to undertake certain work, there is no ability to seek permission to undertake study in a field which is not in an area of concern.

Suggested action

1.81 The committee considers the proportionality of this measure may be assisted were the instrument amended to provide that an individual subject to a WMD determination can seek the minister's permission to undertake specified studies.

1.82 The committee draws these human rights concerns to the attention of the minister and the Parliament.

Quality of Care Amendment (Restrictive Practices) Principles 2024¹⁰⁶

FRL No.	F2024L01464
Purpose	This instrument extends the commencement of Schedule 3 of the Quality of Care Amendment (Restrictive Practices) Principles 2022 until 1 December 2026, allowing the interim provisions to be repealed by that Schedule to continue until that date
Portfolio	Health and Aged Care
Authorising legislation	<i>Aged Care Act 1997</i>
Disallowance	15 sitting days after tabling (tabled in the House of Representatives on 19 November 2024 and in the Senate on 20 November 2024). Notice of motion to disallow must be given by 26 March 2025 in the House and by 27 March 2025 in the Senate ¹⁰⁷
Rights	Rights of persons with disability; equal recognition before the law; equality and non-discrimination; access to justice; effective remedy

Consent to the use of restrictive practices in aged care

1.83 This legislative instrument extends (by a further two years) interim arrangements introduced in 2022 relating to consent to the use of restrictive practices in aged care.¹⁰⁸

1.84 The *Aged Care Act 1997* provides that if a restrictive practice is used on a person in aged care who is assessed to lack capacity to give informed consent to its use, an approved provider or anyone who uses the restrictive practice is not subject to any criminal or civil liability for its use, if informed consent was given by a person or body specified in delegated legislation.¹⁰⁹ The Quality of Care Principles 2014 (Quality

¹⁰⁶ This entry can be cited as: Parliamentary Joint Committee on Human Rights, Quality of Care Amendment (Restrictive Practices) Principles 2024, *Report 1 of 2025*; [2025] AUPJCHR 7.

¹⁰⁷ In the event of any change to the Senate or House's sitting days, the last day for the notice would change accordingly.

¹⁰⁸ See Quality of Care Amendment (Restrictive Practices) 2024, schedule 1, item 1, new subsection 2(1) (table item 4, column 2) and Schedule 1, item 2, new schedule 3 (heading).

¹⁰⁹ *Aged Care Act 1997*, section 54-11. The *Aged Care Act 2024* was passed in 2024, establishing a new legislative framework for the provision of aged care services, however it is yet to commence. Section 163 of the *Aged Care Act 2024* provides that the immunity in relation to the use of a restrictive practice applies until 1 December 2026 to coincide with when this instrument repeals.

of Care Principles) specify a hierarchy of persons who can give consent on behalf of persons in aged care to the use of restrictive practices, if the care recipient is assessed to lack capacity to give consent (for the purposes of the immunity set out in the *Aged Care Act 1997*). Restrictive practices include physical, environmental, mechanical or chemical restraints or seclusion¹¹⁰ (such as the use of restraining chairs, bed rails, locked doors or medications for the purpose of sedation).

1.85 In 2022, the Quality of Care Principles were amended to specify who is classified as a 'restrictive practices substitute decision-maker'.¹¹¹ These amendments were intended to address 'unexpected outcomes' as in many jurisdictions it was unclear if the relevant state or territory laws could provide the necessary authorisation. The amendments were intended to introduce interim arrangements to allow time for state and territory governments to make amendments to their consent and guardianship laws.¹¹²

1.86 These amendments provide that priority for who can give consent is an individual or body appointed under a relevant state or territory law (where the care recipient lives) who can give consent to a restrictive practice.¹¹³ If no such person or body has been appointed and there is no clear mechanism for appointing such a person or body, or an application has been made but there is a significant delay in deciding the appointment, then the following persons or bodies can give consent in hierarchical order:¹¹⁴

- (a) a restrictive practices nominee – being an individual or group of individuals nominated in writing by the care recipient while they still had capacity;
- (b) the care recipient's partner with whom they have a close continuing relationship;
- (c) a previous unpaid carer, who is a relative or friend of the care recipient with whom they have a close continuing relationship and who has a personal unpaid interest in the care recipient's welfare (and if more than one, the eldest relative or friend);
- (d) the care recipient's relative or friend with whom they have a close continuing relationship and who has a personal unpaid interest in the

¹¹⁰ See Quality of Care Principles 2014, section 15E.

¹¹¹ Quality of Care Amendment (Restrictive Practices) Principles 2022 [F2022L01548].

¹¹² Quality of Care Amendment (Restrictive Practices) Principles 2022, explanatory statement, pp. 2–3.

¹¹³ See Quality of Care Amendment (Restrictive Practices) Principles 2022, Schedule 1, item 3, subsection 5B(1).

¹¹⁴ Quality of Care Amendment (Restrictive Practices) Principles 2022, Schedule 1, item 3, subsection 5B(2) and table.

care recipient's welfare (and if more than one, the eldest relative or friend); or

- (e) a medical treatment authority, being a person or body appointed in writing under state or territory law as one that can give consent to the provision of medical treatment to the care recipient.

1.87 All of those who could consent on the care recipients' behalf must themselves have the capacity to consent and have agreed in writing to act as a restrictive practices substitute decision-maker.

1.88 This legislative instrument extends the operation of those interim arrangements by another two years to allow states and territories further time to consider updates to their respective consent and guardianship laws, as well as recommendations made in the Final Report of the Royal Commission into Violence, Abuse, Neglect and Exploitation of People with a Disability.¹¹⁵

International human rights legal advice

Rights of persons with disability; equal recognition before the law; equality and non-discrimination; access to justice; effective remedy

1.89 As the committee has previously concluded,¹¹⁶ the Quality of Care (Restrictive Practices) Principles 2014 risk being incompatible with a range of human rights, particularly the rights of persons with disability. In particular, there is no requirement to provide for supported, rather than substitute, decision-making; much depends on unknown safeguards in state and territory legislation (and it remains unclear if the processes in each state and territory are themselves compatible with the rights of persons with disabilities); there is some uncertainty for providers as to the applicable law in their jurisdiction; and there is a broad-ranging immunity from liability.

1.90 The statement of compatibility does not identify that this legislative instrument engages the rights of persons with disability,¹¹⁷ despite the committee having previously set out how this and other human rights are engaged.¹¹⁸

1.91 The use of restrictive practices themselves raises serious human rights concerns, noting the clear position under international human rights law that such practices are not consistent with multiple human rights, including the prohibition of

¹¹⁵ Explanatory statement, p. 2.

¹¹⁶ Parliamentary Joint Committee on Human Rights, [Report 3 of 2023](#) (15 March 2023) pp. 13–23.

¹¹⁷ The statement of compatibility states that the instrument promotes human rights by setting out clear consent arrangements.

¹¹⁸ See, most recently, Parliamentary Joint Committee on Human Rights, [Report 3 of 2023](#) Report 3 of 2023 (15 March 2023) pp. 1–23 and [Report 1 of 2023](#) (8 February 2023) pp. 53–60.

torture and ill-treatment.¹¹⁹ It is acknowledged that there are important safeguards around the use of restrictive practices that now apply in legislation. However, in relation to the issue of substituted consent, as much depends on unknown safeguards in state and territory legislation, and as there is no requirement to provide for supported, rather than substitute, decision-making, this principle does not appear to be compatible with the rights of persons with disability.

1.92 As the committee previously noted, there may be a risk that the Quality of Care Principles (as amended in 2022) have the effect of facilitating the use of restrictive practices, which is inconsistent with Australia's obligation to minimise, and ultimately eliminate, the use of restrictive practices. Setting out who can consent to the use of restrictive practices on behalf of an aged care recipient engages and may limit a number of human rights including the rights of persons with disabilities.

1.93 In addition, the principles, in specifying persons who may consent for the purposes of granting immunity from all civil and criminal liability to those who rely on that consent, engage and may limit the rights of persons with disabilities to equal recognition before the law, equality and non-discrimination, and access to justice, and have implications for the right to an effective remedy.¹²⁰ The committee considered the immunity provision in 2022 when it was introduced as an amendment to the *Aged Care Act 1997* and concluded that it did not appear to be compatible with the above listed rights.¹²¹ The committee again considered the immunity provision as it applied to the principles in 2023 and reached the same conclusion.¹²² The extension of the interim arrangements by a further two years means the immunity provisions continue to apply, which continues to engage and may limit the rights listed above.

1.94 As such, extending the principles by a further two years does not appear to be compatible with a range of human rights, particularly the rights of persons with disability.

¹¹⁹ UN Committee on the Rights of Persons with Disabilities, Guidelines on the right to liberty and security of persons with disabilities, A/72/55 (2017) [12]. The Committee called on States parties 'to protect the security and personal integrity of persons with disabilities who are deprived of their liberty, including by eliminating the use of forced treatment, seclusion and various methods of restraint in medical facilities, including physical, chemical and mechanical restraints. The Committee has found that those practices are not consistent with the prohibition of torture and other cruel, inhuman or degrading treatment or punishment of persons with disabilities, pursuant to article 15 of the Convention'.

¹²⁰ International Covenant on Civil and Political Rights, articles 2 and 26; Convention on the Rights of Persons with Disabilities, articles 5, 12 and 13.

¹²¹ Parliamentary Joint Committee on Human Rights, [Report 1 of 2022](#) (9 February 2022) pp. 23–39.

¹²² Parliamentary Joint Committee on Human Rights, [Report 3 of 2023](#) (15 March 2023) p. 5.

Committee view

1.95 The committee notes that the use of restrictive practices on persons in aged care raises significant human rights issues, as previously considered by the committee,¹²³ particularly in its 2019 inquiry into restrictive practices legislation.¹²⁴ The committee notes that, by extending the operation of interim arrangements for substitute decision-makers to consent to the use of restrictive practices on persons in aged care, this legislative instrument engages the same substantive issues with respect to those measures, meaning that the committee's previous comments on these measures are relevant.

1.96 The committee notes that this legislative instrument seeks to provide more time to jurisdictions which have advised that they would not have updated their respective consent and guardianship laws ahead of the interim provisions being repealed on 1 December 2024, and that it remains intended as an interim arrangement until state and territory guardianship and consent laws can be amended, or until 1 December 2026.¹²⁵

1.97 However, the committee considers that, by further extending these interim arrangements, this instrument also risks being incompatible with a range of human rights, particularly the rights of persons with disability, noting that there is no requirement to provide for supported, rather than substitute, decision-making; much depends on unknown safeguards in state and territory legislation; much depends on aged care providers understanding the complex hierarchy of these consent arrangements and understanding the interplay between this legislation and relevant state and territory laws; and there is a broad-ranging immunity from liability. The committee reiterates the detailed comments it made regarding these matters in 2023.¹²⁶

1.98 The committee considers the inclusion of supported decision-making as a guiding principle of the *Aged Care Act 2024* in relation to the decisions, actions and behaviours of those operating in aged care to be a positive measure.

1.99 The committee reiterates that further consideration should be given to whether the consent model to the use of restrictive practices is the best approach to protect the rights of aged care residents.

¹²³ See, most recently, Parliamentary Joint Committee on Human Rights, [Report 9 of 2024](#) (10 October 2024) pp. 31–45; [Report 3 of 2023](#) (15 March 2023) pp. 1–23, and [Report 1 of 2023](#) (8 February 2023) pp. 53–60.

¹²⁴ Parliamentary Joint Committee on Human Rights, [Quality of Care Amendment \(Minimising the Use of Restraints\) Principles 2019](#) (13 November 2019).

¹²⁵ Explanatory statement, p. 2.

¹²⁶ Parliamentary Joint Committee on Human Rights, [Report 3 of 2023](#) (15 March 2023) pp. 20–23.

Suggested action

1.100 The committee reiterates its previous advice that the Quality of Care Principles 2014 may be somewhat clarified if they were amended to:

- (a) set out a process of who may give informed consent in the event that an application has been made to appoint a person to give consent but there is a significant delay in deciding the application; and
- (f) define what constitutes a 'significant delay' and explain when there is no 'clear mechanism for appointing such an individual or body under the law of the State or Territory'.¹²⁷

1.101 The committee reiterates its previous recommendation that the minister and Department of Health and Aged Care, in its ongoing consultation with relevant stakeholders, consider whether:

- (a) there is sufficient and nationally consistent guidance readily available to aged care providers and workers to support them in undertaking an assessment of whether an aged care resident has the capacity to provide informed consent;
- (g) the model of seeking consent to the use of all forms of restrictive practices, that do not relate to medical treatment, is the most appropriate way to protect residents' rights, and whether it would be more appropriate to differentiate between different forms of restraint (such as in the NDIS rules);
- (h) the issue of who may provide informed consent is best left to the states and territories, or whether there would be benefit in the Commonwealth adopting a uniform 'best practice' approach to this issue;
- (i) whether all state and territory legislation on the issue of who can provide informed consent is compliant with the UN Convention on the Rights of Persons with Disabilities; and
- (j) there is effective oversight and monitoring of substitute decision-makers.

1.102 The committee recommends that the statement of compatibility be updated to provide an assessment of the rights identified above, having regard to the committee's previous comments.

1.103 The committee draws these human rights concerns to the attention of the minister and the Parliament.

¹²⁷ Quality of Care Principles 2014, paragraphs 5B(2)(b)(i) and (ii).

